

ANSWER TO COUNTERCLAIM

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Eighth Judicial District Court, Clark County, Nevada

Case No.: A-26-874219-C **Dept. No.:** XVII

Dermot A. Cruller, **an individual**, Counter-defendant, vs. **Wendell Prine, an individual**, Counterclaimant.

Date filed: 31 August 2026

ANSWER TO COUNTERCLAIM FOR BREACH OF CONTRACT

Counter-defendant **Dermot A. Cruller** answers the Counterclaim for Breach of Contract filed by Counterclaimant Wendell Prine on 10 August 2026 as follows.

1. General denial

Except as specifically admitted below, Counter-defendant denies each and every allegation of the Counterclaim.

2. Specific admissions

Counter-defendant admits that on 1 April 2025 Counterclaimant offered Counter-defendant a doughnut over the hedge dividing the parties' properties, describing it only as "neat"; that Counter-defendant took a partial bite on that date and set the remainder aside; and that the remainder was consumed on 14 April 2026. Counter-defendant denies that those acts formed a contract of any kind, denies that any consideration passed beyond the doughnut itself, and denies each remaining allegation of the Counterclaim.

3. Affirmative defenses

- **First Affirmative Defense — failure to state a claim.** The Counterclaim fails to state a claim upon which relief can be granted. A human soul is not property capable of legal conveyance, and a purported bargain for one states no claim a court can enforce, whatever the parties are alleged to have intended by it.
- **Second Affirmative Defense — no meeting of the minds.** Counter-defendant never assented to the conveyance of anything beyond a doughnut, having never been told that a further exchange was proposed. A term neither disclosed nor discoverable before performance cannot be the term of an agreement.
- **Third Affirmative Defense — fraudulent concealment.** Describing the instrument as merely "neat," while omitting the term Counterclaimant now says it carried, converted silence about a material term into an affirmative misrepresentation. A contract induced that way is voidable at Counter-defendant's election, and it has been rescinded.
- **Fourth Affirmative Defense — unconscionability.** The alleged term is both procedurally and substantively unconscionable under Nevada law. The Nevada Supreme

Court has held that a term is procedurally unconscionable where “a party lacks a meaningful opportunity to agree to the clause terms . . . because the clause and its effects are not readily ascertainable upon a review of the contract,” and that substantive unconscionability turns on the one-sidedness of the term itself. *D.R. Horton, Inc. v. Green*, 120 Nev. 549, 96 P.3d 1159 (2004). A term placed where it cannot be read before the instrument is consumed is not ascertainable on any review, and a soul traded for one doughnut is one-sided on its face.

- **Fifth Affirmative Defense — no consideration flowed to Counter-defendant.** Counter-defendant received nothing beyond the doughnut already accounted for in paragraph 2. A promise unsupported by consideration running the other way binds no one.

4. Prayer for relief

Counter-defendant prays that the Counterclaim be dismissed with prejudice, that judgment be entered for Counter-defendant, and for costs and such other relief as the Court deems just.

Dermot A. Cruller, by and through counsel

Neon Law, 2400 Confection Way, Suite 400, Las Vegas, Nevada 89101, Attorneys for Counter-defendant **Dermot A. Cruller**.